

Germany - Money Laundering Act Obligations and Supervisory Expectations

Cash thresholds, transparency register duties, and reporting to the national FIU

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This document is synthetic content authored for a multi-agent fraud intelligence hackathon. It paraphrases the structure and themes of public materials (German Geldwaeschegesetz (GwG) and BaFin interpretative guidance, publicly available) but contains no verbatim reproduction of them. Thresholds, codes and identifiers are illustrative.

1. Scope

Obligated parties include credit institutions, financial services institutions, payment institutions, insurance undertakings, goods traders, real estate agents, notaries, lawyers, tax advisers and virtual asset service providers.

2. Thresholds

Situation	Threshold	Requirement
Occasional transaction	15,000 EUR or more	Full identification
Money transfer / remittance	1,000 EUR or more	Full identification
Goods traders - cash	10,000 EUR or more	Full identification and enhanced record keeping
Precious metals dealers - cash	2,000 EUR or more	Full identification
Real estate transactions	Any amount	Identification and mandatory notarial reporting of specific indicators

3. Transparency register

Legal entities must register their beneficial owners. Obligated parties must consult the register before establishing a relationship and must report discrepancies between register content and the information they hold. A discrepancy report is mandatory and is not a suspicion report.

4. Suspicion reporting

- Reports are submitted electronically to the national FIU. Where a report concerns a transaction, the transaction may not be executed before the third business day following submission unless the FIU consents.
- Real estate notarial reporting covers defined case groups including unusual payment arrangements and involvement of high-risk jurisdictions.
- Failure to report or delayed reporting carries administrative fines scaled to group turnover.

5. Local red flags

- Cash-intensive gastronomy or car trading businesses with deposits clustered just below 10,000 EUR.
- Purchase of real estate by a foreign legal entity with a nominee managing director and no verifiable operating history.
- Layering through gold and precious metal purchases at successive dealers, each below the 2,000 EUR identification threshold.
- Use of a German account solely as a transit point between two non-EU jurisdictions.